

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Chad David, Attorney	5.5	\$550.00	\$3,025.00
Joshua Youssefi, Attorney	8.4	\$500.00	\$4,200.00
Nicolas Dillavou, Attorney	18.4	\$500.00	\$9,200.00
Christine Morano, Attorney	7.5	\$300.00	\$2,250.00
Lisa Tyler, Paralegal	14	\$150.00	\$2,100.00
Anna Costello, Paralegal	19.7	\$150.00	\$2,955.00
Inigo Gatus, Paralegal	1.4	\$150.00	\$210.00
Sierra Jacobs, Paralegal	3	\$150.00	\$450.00
Additional Wrap Up Fees	2	\$300.00	\$600.00
TOTAL	79.9		\$24,990.00

Motion for Attorney's Fees GRANTED as shown above.

Award of \$24,990.00 in fees + \$800.40 costs for total award of \$25,790.40.

OSC re dismissal confirmed for 10.19.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2501673	SUGAMELI-JARFAS VS GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY	MOTION FOR ATTORNEYS FEES BY DARLEAN VIRGINIA SUGAMELI- JARFAS

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, the parties settled through a written settlement agreement, with the Court to decide attorney fees upon separate motion. (Daghighian Decl. ¶ 39.)

The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Sepehr Daghighian, ¶ 5-11, counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Sepehr Daghighian, Partner	12.1	\$625.00	\$7,562.50
Michael Rosenstein, Partner	1.3	\$700.00	\$910.00
Brian Murray, Associate	20.3	\$550.00	\$11,165.00
Miguel Ortiz, Associate	2.0	\$525.00	\$1,050.00
TOTAL	35.7		\$20,687.50

Here, the hourly rates are not reasonable for Riverside County. Counsel is located in Los Angeles County. The court is reducing to reasonable rates in this area.

A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) There were two partners, one senior associate, and one associate attorney working on this matter. There is no indication that this case was so complex as to require the higher billing rates of two partners and a senior associate with hourly rates ranging from \$550.00 to \$700.00 rather than a single associate attorney. Indeed, Daghighian and Rosenstein’s contributions include drafting deposition notices and the instant fee motion, as well as client communications. The court will not award the higher billing rate of a partner to accomplish routine tasks, especially as the bulk of the case workup was performed by Murray, a senior associate attorney. Additionally, this is a routine lemon law case, which did not require any law or motion, and therefore should not necessitate the higher billing rate of a senior associate rather than an associate attorney.

Further, all of the timekeepers are attorneys because Plaintiff’s counsel “do[es] not bill for paralegal and administrative work.” (Daghighian Decl., ¶ 7.) However, contrary to this assertion, Murray billed at least 2.0 hours for calculating deadlines and updating the litigation calendar.

Daghighian billed 3.0 hours for drafting the underlying fee motion, and expects to spend another 7.5 hours to review the opposition, draft the reply, and attend the hearing on this motion. This amount of time for a partner to prepare a motion and prepare for a hearing is excessive.

As to the request for a multiplier, the purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.

Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.)

Plaintiff seeks a “modest” 50% multiplier for litigating this basic lemon law case. However, there is no reason for a lodestar enhancement here. The evidence shows there was limited law and motion presented apart from a joint stipulation. Plaintiff submits no evidence to show that the depositions and written discovery performed in this case were anything but routine. Accordingly, this was not a complicated case and there is no evidence of any exceptional quality of work to justify a multiplier. Counsel’s request based on contingency fee should already be accounted for in their hourly rate.

As for costs, Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiff seeks \$3,033.54 in costs and expenses in litigating this case. Defendant does not contest the amount of costs claimed by Plaintiff.

The modifications to the award of attorney fees are reflected in the chart below:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Sepehr Daghighian, Partner	5.6	\$525.00	\$2940.00
Michael Rosenstein, Partner	1.3	550.00	\$825.00
Brian Murray, Associate	18.3	\$350.00	\$6,405.00
Miguel Ortiz, Associate	2	\$325.00	\$650.00
TOTAL	27.2		\$10,820.00

Motion for Attorney’s Fees GRANTED as shown above.

Award of \$10,820.00 in fees + \$3,033.54 costs for total award of \$13,853.54.

OSC re dismissal confirmed for 8.17.26.